



EAGLE MOUNTAIN CITY COUNCIL MEETING

FEBRUARY 4, 2025, 5:00 PM

EAGLE MOUNTAIN CITY COUNCIL CHAMBERS

1650 E STAGECOACH RUN, EAGLE MOUNTAIN, UT 84005

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Jared Gray, and Brett Wright.

CITY STAFF PRESENT: Benjamin Reeves, City Manager; Steve Mumford, Deputy City Manager; Fionnuala Kofoed, Assistant City Manager; Evan Berrett, Economic Development Director; Marcus Draper, City Attorney; Kimberly Ruesch, Director of Administrative Services; Tyler Maffitt, Communications Manager; Angela Valenzuela, Human Resources Manager; Brandon Larsen, Planning Director; Todd Black, Wildlife Biologist and Environmental Planner; David Stroud, Senior Planner; ; Elizabeth Fewkes, Planner; Ashley Swensen, Planner; Gina Olsen, City Recorder; Vince Hogge, City Engineer; Brad Hickman, Public Works Director; David Salazar, Assistant City Engineer; Natalie Winterton, Grants Coordinator and Management Analyst; Terrence Dela Pena, Finance/Management Analyst; Mack Straw, Public Utility Manager; Zac Hilton, Public Services Manager; Bailey Ensign, Digital Communications Specialist; John Magness, Management and Policy Analyst; Embret Fossum, UFA Battalion Chief; B.J. Eccles, Sergeant and Carson Stapley, Information Systems Manager.

CITY STAFF PRESENT ELECTRONICALLY: Councilmember Rich Wood and Clifford Strachan, Director of Legislative Affairs.

5:00 PM WORK SESSION – CITY COUNCIL CHAMBERS

Mayor Westmoreland called the meeting to order at 5:01 PM.

1. DISCUSSION AND INFORMATION ITEMS

1.A. LEGISLATIVE UPDATE - David Stewart, Lobbyist

[The recording of the discussion can be found online here at 00:01:13.](#)

Lobbyist David Stewart appeared electronically to provide a legislative update surrounding the boundary split of Alpine School District.

1.B. DISCUSSION – Tourism Plan

[The recording of the discussion can be found online here at 00:37:58.](#)

Digital Communication Specialist Bailey Ensign presented the item and noted that Eagle Mountain's Mission Statement identifies visitors as a key audience for the City's services and opportunities. Following several months of research, the Communications Department is seeking Council direction on whether a well-planned and comprehensive tourism effort is needed to provide meaningful solutions to issues facing the community.

2. AGENDA REVIEW

10.A. Firefly 4MG Tank Change Order #2

[The recording of the adjournment can be found online here at 00:54:54.](#)

Councilmember Wright requested that the item be removed from the Consent Agenda and placed on the Scheduled Items agenda due to a conflict of interest with Firefly, allowing the remaining Councilmembers to vote while Councilmember Wright abstained from the vote.

12.B. SITE PLAN - Verizon Pro Communications Tower

[The recording of the adjournment can be found online here at 00:55:47.](#)

Councilmembers requested that this item be removed from the Consent Agenda and placed under Scheduled Items to allow for further discussion regarding the project specifications and to clarify whether Verizon is permitted to construct an additional communications tower that has already been approved.

13.A. RESOLUTION - A Resolution of Eagle Mountain City, Utah, Approving an Interlocal Cooperation Agreement between Mountainland Association of Governments (Utah County) and Eagle Mountain City Related to the Design and Construction of the Traffic Signal at Pony Express Pkwy and Eagle Mountain Blvd

[The recording of the adjournment can be found online here at 00:58:02.](#)

Councilmembers and Planner David Salazar discussed various concerns related to the traffic flow and directional patterns of the new road.

13.C. RESOLUTION - A Resolution Approving the First Amendment to the QTS Eagle Mountain Development Agreement

[The recording of the adjournment can be found online here at 01:03:21.](#)

Councilmembers requested that this item be removed from the Consent Agenda and placed on the Scheduled Items for further discussion.

3. ADJOURN TO A CLOSED SESSION

MOTION: *Councilmember Wright moved to adjourn into a Closed Session for the purpose of discussion of pending or reasonably imminent litigation; the character, professional competence, or physical or mental health of an individual; and/or the purchase, lease, or exchange of real property, pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Burnham seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes

Brett Wright Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 01:05:10.](#)

The Work Session was adjourned to a Closed Session at 6:06 PM.

7:00 PM POLICY SESSION – CITY COUNCIL CHAMBERS

4. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 07:20 PM.

5. PLEDGE OF ALLEGIANCE

Councilmember Burnham led the Pledge of Allegiance.

6. INFORMATION ITEMS/UPCOMING EVENTS

7. PUBLIC COMMENTS

[The recording of the public comments can be found online here at 01:09:52.](#)

Mayor Westmoreland opened the public comment period at 7:22 PM.

The following individuals spoke during the public comment period: Steven Gunnell, Kevin Shackelford, Trent Issacson, Mike Leatham, Joy Rasmussen, Jason Rasmussen, Traci Porretta, Christine Mikell, Jenny Rees, Jared Hathaway, Zach Hassell, Elbamaría Perez and Steve Poretta.

Mayor Westmoreland closed the public comment period at 7:48 PM.

8. CITY COUNCIL/MAYOR ITEMS

[The recording of the discussion can be found online here at 01:36:34.](#)

The Mayor and Councilmembers offered comments to the public.

CONSENT AGENDA

9. BOND RELEASES

9.A. Oquirrh Mountain Ranch Phase B, Plat 2 - Into Warranty

9.B. Eagle Crest Commercial Plat 1 - Out of Warranty

10. CHANGE ORDERS

10.A. Firefly 4MG Tank Change Order #2

11. MINUTES

11.A. January 8, 2025 Minutes - City Council Tour of Lake Side Power Plant

11.B. January 28, 2025 Minutes - City Council Budget Work Session

12. PRELIMINARY PLATS & SITE PLANS

12.A. SITE PLAN - AT&T Mt. Airey

12.B. SITE PLAN - Verizon Pro Communications Tower

12.C. SITE PLAN - Sage Park LDS Stake Center

13. RESOLUTIONS

13.A. RESOLUTION - A Resolution of Eagle Mountain City, Utah, Approving an Interlocal Cooperation Agreement between Mountainland Association of Governments (Utah County) and Eagle Mountain City Related to the Design and Construction of the Traffic Signal at Pony Express Pkwy and Eagle Mountain Blvd

13.B. RESOLUTION - A Resolution of Eagle Mountain City, Utah, Approving a Contract for Services with LRB Public Finance Advisors to Provide Municipal Advisor Services

13.C. RESOLUTION - A Resolution Approving the First Amendment to the QTS Eagle Mountain Development Agreement

13.D. RESOLUTION - A Resolution of Eagle Mountain City, Utah, Approving the Purchase Agreement with Ivory Homes and SITLA to purchase 20.99 acres of Land for a Future Civic Campus

MOTION: *Councilmember Wright moved to approve the Consent Agenda removing 10.A., 12.B., 13.C., and 13.D. and placing them on the regularly scheduled items for further discussion. Councilmember Gray seconded the motion.*

Donna Burnham Yes

Melissa Clark Yes

Jared Gray Yes

Rich Wood Yes

Brett Wright Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 01:48:08.](#)

SCHEDULED ITEMS

10.A. Firefly 4MG Tank Change Order #2

[The recording of the discussion can be found online here at 01:49:36.](#)

Councilmember Wright noted a conflict of interest with Item 10.A. He recused himself from the meeting during the discussion and vote.

Councilmembers and City Engineer Vince Hogge discussed the changes required for this item as well as how to handle future Change Orders.

MOTION: *Councilmember Burnham moved to table Firefly 4MG Tank Change Order #2. Councilmember Clark seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Recused

*The motion passed with a unanimous vote of 4:0. **Recused due to Conflict of Interest*

[The recording of the motion can be found online here at 01:59:51.](#)

12.B. SITE PLAN - Verizon Pro Communications Tower

[The recording of the discussion can be found online here at 02:00:38.](#)

Planner Ashley Swensen and Verizon applicant Troy Bensen responded to Councilmember questions regarding the proposed cell tower.

Staff explained that the area near Pony Express Parkway and Eagle Mountain Boulevard has experienced increased wireless traffic, creating the need for a new wireless facility to adequately serve customers. The applicant reviewed multiple potential sites and identified a parcel located at Cedar Valley High School as a suitable location that meets all applicable code requirements.

The Alpine School District was deeded parcel 59:033:0021 on January 25, 2017. The applicant has received permission from the School District to construct the facility on the property and is seeking site plan approval for a Verizon communications tower. The proposed design standards were developed in direct collaboration with the School District and meet Eagle Mountain Municipal Code requirements.

MOTION: *Councilmember Gray moved to approve the Verizon Pro Communications Tower Site Plan. Councilmember Wood seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:16:53.](#)

13.C. RESOLUTION - A Resolution Approving the First Amendment to the QTS Eagle Mountain Development Agreement

[The recording of the discussion can be found online here at 02:17:22.](#)

City Attorney Marcus Draper and QTS representative Nick Blessing responded to Councilmember questions regarding the QTS Development Agreement. On July 18, 2023, the City entered into a Development Agreement with QTS for a data center project located adjacent to the Facebook data center property. At the time of approval, QTS had received assurances from Rocky Mountain Power that sufficient electrical capacity would be available to serve the first phase of the project; however, that no longer appears to be the case.

As a result, the parties are proposing an amendment to the Development Agreement to allow on-site power generation as an accessory use to support the project's viability. Staff noted that this approach is consistent with other previously approved Development Agreements for data center projects.

MOTION: *Councilmember Gray moved to approve a Resolution Approving the First Amendment to the QTS Eagle Mountain Development Agreement. Councilmember Wood seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:51:47.](#)

13.D. RESOLUTION - A Resolution of Eagle Mountain City, Utah, Approving the Purchase Agreement with Ivory Homes and SITLA to purchase 20.99 acres of Land for a Future Civic Campus

[The recording of the discussion can be found online here at 02:52:58.](#)

Deputy City Manager Steve Mumford presented the item and explained that the City is proposing to construct a new civic campus in the area east of Pony Express Parkway, directly across from Cory Wride Park. The City has negotiated a purchase agreement with Ivory Homes and the State of Utah School and Institutional Trust Lands Administration (SITLA) for the acquisition of approximately 20.99 acres of land. The purchase price is \$350,166.75 per acre, based on an appraisal conducted by an independent third party. The property would be subject to a deed restriction.

MOTION: *Councilmember Burnham moved to approve a Resolution of Eagle Mountain City, Utah, Approving the Purchase Agreement with Ivory Homes and SITLA to purchase 20.99 acres of Land for a Future Civic Campus. Councilmember Wright seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	No

Brett Wright Yes

The motion passed with a 4:1 vote.

[The recording of the motion can be found online here at 02:58:52.](#)

14. ORDINANCES/PUBLIC HEARINGS

- 14.A. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 16 Related to the Water Rights and Concept Plans.

[The recording of the discussion can be found online here at 03:00:25.](#)

City Attorney Marcus Draper presented the item and explained that the City is currently auditing the amount of water remaining under its contracts with the Central Utah Water Conservancy District (CUWCD). Under the current code, developers are permitted to satisfy water rights dedication requirements by reserving CUWCD water. The proposed code amendment would limit future use of CUWCD water to non-residential development.

The Planning Commission recommended approval of the amendment with a condition to grandfather developments that have received preliminary plat approval; however, staff explained that this approach is not feasible. The City does not hold sufficient water rights under its CUWCD contracts to accommodate this recommendation.

The amendment also includes several revisions to the Concept Plan chapter that would require additional materials to be submitted as part of the application process.

Mayor Westmoreland opened the Public Hearing at 9:13 PM.

The following individuals spoke during the Public Hearing: Josh Cummings, Bart Page, David Crockett, Brandon Watson, Randy Smith, Brandon Rindlisbacher and Steve Poretta.

Mayor Westmoreland closed the Public Hearing at 9:34 PM.

MOTION: *Councilmember Gray moved to adopt an Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 16 Related to the Water Rights and Concept Plans with changes as stated. Councilmember Wright seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 03:29:04.](#)

- 14.B. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Sections 17.10.030, 17.20.020, 17.25.030, and 17.40.020.

[The recording of the discussion can be found online here at 03:31:39.](#)

Councilmember Wood excuses himself for the rest of the meeting due to illness.

Senior Planner David Stroud presented the item and explained that the Eagle Mountain Municipal Code currently uses at least three different terms to describe the same use: Communication Facility; Radio, Microwave or Transmission Tower; and Communication Facilities and Towers. Of these, only Communication Facility is included in the definitions section of the Code. The proposed amendment would establish a single definition and a single use name, align the terminology throughout the Code to Communication Facilities and Towers, and permit this use within the Industrial zone.

No changes are proposed to this use within the Open Space, Residential, Public Facilities, Commercial, or LMD zones, where it is currently permitted as a Special Use.

Staff noted that consolidating the various terms into a single definition is a best practice. Permitting Communication Facilities and Towers in the Industrial zone is also considered a best practice, as this use is most appropriately located in that zone and may reduce the need to locate such facilities in residential areas, where they are currently allowed.

Mayor Westmoreland opened the Public Hearing at 9:48 PM, seeing no one who wished to speak, Mayor Westmoreland closed the Public Hearing.

MOTION: *Councilmember Wright moved to adopt an Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Sections 17.10.030, 17.20.020, 17.25.030, and 17.40.020. Councilmember Burnham seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a unanimous 4:0 vote.

[The recording of the motion can be found online here at 03:38:07.](#)

- 14.C. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 17.75; Standards for Special Uses - Outdoor Storage of Recreational Vehicles and Trailers.

[The recording of the discussion can be found online here at 03:38:58.](#)

Senior Planner David Stroud presented the item and explained that Eagle Mountain Municipal Code Section 17.38.020, pertaining to the Commercial Storage zone, identifies Outdoor Storage of Recreational Vehicles and Trailers as a Special Use. While additional standards for regulating Special Uses are generally contained in Chapter 17.75, there are currently no adopted standards within that chapter specific to the regulation of Outdoor Storage of Recreational Vehicles and Trailers. Staff noted that a recently approved site plan brought this omission to the City's attention.

Mayor Westmoreland opened the Public Hearing at 9:56 PM.

The following individuals spoke during the Public Hearing: Steve Poretta

Mayor Westmoreland closed the Public Hearing at 9:57 PM.

MOTION: *Councilmember Gray moved to adopt an Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Chapter 17.75; Standards for Special Uses - Outdoor Storage of Recreational Vehicles and Trailers as presented. Councilmember Wright seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a unanimous 4:0 vote.

[The recording of the motion can be found online here at 03:46:06.](#)

15. LEGISLATIVE ITEMS

[The recording of the motion can be found online here at 03:46:50.](#)

15.A. UPDATE - Utah Legislation

16. CITY COUNCIL/MAYOR'S BUSINESS AND LIAISON REPORTS

[The recording of the discussion can be found online here at 04:03:02.](#)

The Mayor and City Council offered comments and reports on committees to which they are assigned as liaisons.

17. COMMUNICATION ITEMS

17.A. Upcoming Agenda Items

18. ADJOURNMENT

MOTION: *Councilmember Wright moved to adjourn the meeting at 10:15 PM. Councilmember Gray seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Excused
Brett Wright	Yes

The motion passed with a unanimous 4:0 vote.

[The recording of the adjournment can be found online here at 04:03:02.](#)

The meeting was adjourned at 10:15 PM.

Approved by the City Council on January 20, 2026.

Lacie Messerly
Lacie Messerly
Interim City Recorder

